

Jagdish v. State of U.P. — electricity recovery relegated to clause 6.8

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · Writ - C No. 10492 of 2022 · **Writ disposed; 6.8 objection permitted; coercive action stayed eight weeks**

HEADNOTE

A consumer challenged a Tehsildar recovery certificate for an electricity demand of Rs.7,87,670. Without examining merits, and on the distribution licensee's statement that an objection could be decided time-bound, the Allahabad High Court disposed of the writ with liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directed decision with hearing in the next four weeks, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Jagdish filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery certificate dated 28 February 2022 for Rs.7,87,670 issued by the Tehsildar, Tehsil Shikarpur, District Bulandshahr, and a mandamus restraining coercive action on that demand. Counsel for the Power Distribution Corporation (respondent no.4) stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The nature of the underlying electricity assessment was not recorded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8-objection-with-interim-stay

HOLDING

Without expressing any opinion on merits, the writ against a Tehsildar recovery certificate for an electricity demand is disposed of with liberty to the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if submitted in time, the licensee shall decide it in accordance with law within the next four weeks after affording reasonable opportunity of hearing; and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a time-bound Para 6.8 objection before the licensee, with hearing and a stay of coercive recovery until disposal or eight weeks, whichever is earlier. ¶ 4-5

alternative-remedy-statutory-appeal-6.8 The writ was disposed without a merits grant or refusal, relegating the consumer to the Supply Code Para 6.8 objection against the demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE DATED 28.2.2022 AND THE UNDERLYING ELECTRICITY DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4